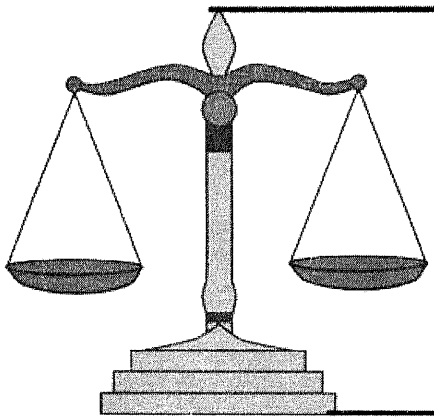


Jamaica Collection &Recovery Services Ltd.

The choice for delinquent accounts recovery

JCRS - Addendum
Employment Contract

DATA PROTECTION SCHEDULE

This Schedule is a Data Processing Agreement ("Schedule" or "DPA") which forms part of the Agreement between: (i) Jamaica Collections & Recovery Services Agency acting on its own behalf; and (name of employee Bernard Ewers).

The terms used in this DPA shall have the meanings set forth in this DPA. Capitalized terms not otherwise defined herein shall have the meaning given to them in the Agreement. Except as modified below, the terms of the Agreement shall remain in full force and effect.

In consideration of the mutual obligations set out herein, the parties hereby agree that the terms and, conditions set out below shall be added as a Schedule to the Agreement. Except where the context requires otherwise, references in this Schedule to the Agreement are to the Agreement as amended by, and including, this Schedule.

1. In this Schedule, the following terms shall have the meanings set out below and cognate terms shall be construed accordingly:
   1.1. "Personal Data" means information (however stored) relating to a living individual or an individual who has been deceased for less than thirty years, who can be identified from that information (alone or jointly with other information). The term includes personal identifiable information collected, processed, and/or transferred in any format, including but not limited to hard copy, electronic, video recording and audio recording.
   1.2. "Client Personal Data" means any Personal Data Processed by JCRS on behalf of the Client pursuant to or in connection with the Agreement;
   1.3. "Data Protection Laws" means the
      a. Jamaica Data Protection Act, 2020;
      b. any other applicable data protection legislation;
      c. any laws that replace, extend, re-enact, consolidate or amend any of the foregoing; and
      d. all guidance, guidelines, codes of practice and codes of conduct issued by any relevant Information Commissioner relating to such Data Protection Laws (in each case whether or not legally binding);

1.4. "Data Subject" refers to any individual person who can be identified, directly or indirectly, through the use of Personal Data that is processed pursuant to the Agreement.

2. Employee shall only collect, access, use or otherwise process the Client Personal Data in performance of My duties and obligations under this Agreement, in conformance with Data Protection Laws, Client's instructions or permission or to comply with legal obligations and shall to the extent permitted by **law** inform the Client of that legal requirement before the compliance.

3. Employee is obligated to carry out my functions in a reliable and confidential manner in relation to my use and access to Client Personal Data and ensure that such access is restricted on a need-to-know basis.

4. Employee shall not make any secondary or other use of Client Personal Data, including for the purposes of direct marketing or data mining.

S. Employee shall limit the disclosure of the Client Personal Data to those purposes that relate to the Agreement and is prohibited from disclosing, sharing with, providing access or transferring the Personal Data to any third party.

7. Employee shall adopt adequate (considering the nature of the Client Personal Data, ii) industry best practices; (iii) the nature, scope, context and purposes of Processing; and (iv) the risks and likelihood of harm to rights and freedoms of the Data Subjects) technical and organizational measures reasonably necessary to secure the Client Personal Data and to prevent accidental or unlawful destruction, loss, damage or alteration and against unauthorised disclosure, abuse or other processing in violation of the requirements of Data Protection Laws for the entire term of the Agreement in the carrying out of their duties and obligations.

9. Taking into account the nature of the Processing, Employee shall assist JCRS by implementing Appropriate technical and organisational measures, insofar as this is possible, for the fulfilment of the obligations to respond to requests to exercise Data Subject rights under the Data Protection Laws.

9.1. Employee shall:

9.1.1. promptly notify JCRS if it or any Sub-processor receives a request from a Data Subject under any Data Protection Law in respect of Client Personal Data or any regulatory request for, subpoena, search warrant, or other legal, regulatory, administrative, or governmental process seeking Client Personal Data of the Data Subjects; and

9.1.2. ensure that employee/any Sub-processor does not respond to that request except on the documented instructions of JCRS/as required by Data Protection Laws to which the employee is subject, in which case the JCRS shall to the extent permitted by Data Protection Laws inform Client of that legal requirement before JCRS responds to the request.

9.2. Taking into account the nature of the Processing, Employee shall assist JCRS by Implementing appropriate technical and organisational measures, insofar as this is Possible, for the fulfilment of the Client's obligations, as reasonably understood by Client, to respond to such requests.

10. Personal Data Breach

10.1. Employee shall notify JCRS without undue delay Upon any Sub-processor becoming aware of a Personal Data Breach Affecting Client Personal Data, providing Client with sufficient information to allow Client to meet any obligations to report or inform Data Subjects of the Personal Data Breach under the Data Protection Laws. Such notification shall as a minimum:

10.1.1. describe the nature of the Personal Data Breach, the categories and numbers of Data Subjects concerned, and the categories and numbers of Personal Data records concerned;

10.1.2. communicate the name and contact details of JCRS's data protection officer or other relevant contact from whom more information may be obtained;

10.1.3. describe the likely consequences of the Personal Data Breach; and

10.1.4. describe the measures taken or proposed to be taken to address the Personal Data Breach.

10.1.5. I shall co-operate with JCRS and take such reasonable commercial steps as are directed by Client to assist in the investigation, mitigation, and remediation of each such Personal Data Breach.

12. Liability and Indemnity

12.1. Employee shall fully indemnify and keep indemnified and defend at its expense, JCRS, against all costs, claims, damages or expenses incurred by JCRS or for which JCRS may become liable due to any breach of this Agreement by its employees.

JCRS shall be in no way liable for any damages (including indirect or consequential) of Client such as (but not limited to) loss of revenue, loss of profit, loss of opportunity, loss of goodwill and third party claims arising from employee 's non-compliance with the terms of this DPA or the Data Protection Laws.

13. The parties to this DPA hereby submit to the choice of jurisdiction stipulated in the Agreement with respect to any disputes or claims howsoever arising under this DPA, including disputes regarding its existence, validity or termination or the consequences of its nullity; and

13.1. This DPA and all non-contractual or other obligations arising out of or in connection With it are governed by the laws of the country or territory stipulated for this purpose in the Agreement.

14. In the event of a conflict or inconsistency between this DPA and any other portion of the Agreement, the DPA shall prevail.

Bernard Ewers

(Employee Name)

(Employee Signature)